

places of employment during the entire time that Defense counsel's firm was "seeking to track her down." Defense counsel may have experienced difficulty maintaining contact with his client, but Defendant herself had some obligation to maintain communication with her retained counsel.

In addition, the sanctions order remains outstanding and the court notes that the order was imposed against both Defendant and her counsel. There does not appear to be any justification for defense counsel not to have paid the \$4,440 ordered to be paid by July 31, 2025.

The court recognizes its discretion to issue terminating sanctions in the current case. However, the court also recognizes it must consider whether a sanction short of dismissal or default would be appropriate. The court in *Deyo v. Kilbourne* (1978) 84 Cal. App. 3d 771 described a list of non-exclusive factors a court may consider determining the appropriateness of terminating sanctions, and observed, "[E]ach case must be decided on its own facts and, while lesser sanctions are normally imposed, the ultimate sanction is permissible where the litigant persists in refusing to comply with his discovery obligations." *Deyo, supra*, 84 Cal. App. 3d at 797. The California Supreme Court more recently directed trial courts to consider lesser sanctions before imposing more severe sanctions. In *City of Los Angeles v. PricewaterhouseCoopers, LLP* (2024) 17 Cal. 5th 46, at 422, the court noted, "[A] more severe sanction is disfavored if a lesser sanction is available."

Here, Defendant provided full verified discovery responses as soon as defense counsel re-established communication with his client, but Defendant has not proffered a good reason for the lack of communication between attorney and client—especially during a period when Defendant lived in the same place and worked at the same two jobs. In addition the sanctions remain unpaid and no justification for the defense attorney's lack of compliance with the court's sanctions order has even been proffered.

Monetary sanctions have already been ordered and ignored. However, the court finds that terminating sanctions would be excessive at this stage. The July 11, 2025 hearing was the first and only hearing on discovery issues in this case and the conduct at issue here – while concerning and not substantially justified -- is not so egregious as to warrant the entry of a default judgment against Defendant.

The court **denies** the motion for terminating sanctions, but **grants** the Plaintiff's motion for an issue sanction against Defendant. The court orders that the following facts are established:

[1] Defendant VIRGINIA GRUVER was negligent at the time of the accident, and [2] Defendant VIRGINIA GRUVER'S negligence was a substantial factor in causing harm to Plaintiffs.

The court also **orders** that Defendant pay the \$4,440 sanction previously ordered by the court to be paid within 20 calendar days of service of notice of entry of this order. Defendant should take notice that a party may be subject to a monetary sanctions of up to \$1500 under CCP § 177.5 for failure to obey a lawful court order.

6. 9:00 AM CASE NUMBER: C24-02650
CASE NAME: BRANDON B. VS. LIBERTY UNION HIGH SCHOOL DISTRICT
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: LIBERTY UNION HIGH SCHOOL DISTRICT
TENTATIVE RULING:

Defendants Liberty Union High School District, Linda Ghilarducci and Samantha Boeger's demurrer to the first amended complaint is **sustained with leave to amend**. Plaintiff may file and serve an amended complaint within 10 days after notice of entry of this ruling.

Brandon is a 16 year old minor who is represented by his mother and guardian ad litem, Shauna Butler. Brandon was attacked by another student, Dwayne, while at school on August 29, 2023 during their 3rd period physical education class. (Comp. ¶¶21, 26.) Dwayne slapped Brandon's hand. (Comp. ¶26.) Dwayne continued to push Brandon after slapping his hand and Brandon walked away. (Comp. ¶27.)

Another student, Angela, saw that Dwayne had hit Brandon's hand. (Comp. ¶28.) Dwayne was wearing crocs and the PE teacher required students in crocs to walk along the wall when wearing them. (Comp. ¶30.) There were no other aids in the PE class despite there being more than 20 students. (Comp. ¶31.)

Later in that class, Brandon was sitting down in his line because he was going to play indoor soccer. Brandon was sitting against the wall talking to another student. (Comp. ¶32.) Dwayne gave his phone to another student for the student to film him "swinging" on Brandon. (Comp. ¶33.) That student recorded the incident, which shows: Dwayne walked up to Brandon (who was sitting) and began to punch him. Dwayne was wearing a solid ring on the hand he used to punch Brandon. (Comp. ¶34.)

The PE Teacher, Ghilarducci, witnessed the attack but did not try to stop it, except for blowing her whistle. (Comp. ¶35.) Other students stopped the attack. (Comp. ¶36.) Dwayne was escorted by the Teacher's Assistant out of the gym. (Comp. ¶37.)

Brandon was taken to the school office. He was injured with a bloody eye but was not offered medical care. (Comp. ¶38.) Assistant principal Boeger spoke with Brandon, but did not offer him medical care. (Comp. ¶39.) Brandon's mother was not notified of the fight by school administration, but learned of it from Brandon's girlfriend. (Comp. ¶44.) Brandon was suspended from school even though he was not the aggressor. (Comp. ¶44.) When questioned by Brandon's mother, Boeger lied to her and said that Brandon had been sucker punched once even though the video showed otherwise. (Comp. ¶45.)

Brandon sued Liberty Union High School District and Liberty Union High School for causes of action for (1) negligence, (2) negligent supervision, (3) negligent supervision, retention and training and (5) dangerous condition of public property. Brandon also sued the District and Boeger for cause of action for (4) intentional infliction of emotional distress. Ghilarducci is named in the complaint, but

not in any of the causes of action.

After the FAC was filed, Plaintiff agreed to dismiss Liberty Union High School and the cause of action for dangerous condition of public property. Plaintiff has not yet filed a dismissal on these items, but these items were not included in the demurrer.

Defendants demur to each cause of action based on the failure to allege sufficient facts to state a cause of action. (Code of Civil Procedure §430.10(e).) They also demur to cause of action one on uncertainty. (Code of Civil Procedure § 430.10(f).)

Meet and Confer

Here, it appears that Defendants attempted to meet and confer and Plaintiff's counsel did not respond until after they amended their complaint. After the FAC was filed, Plaintiff's counsel apparently discussed some issues with Defendants' counsel. It does not appear that the meet and confer requirements were fully met in this case. The Court will, however, rule on the merits. The Court reminds the parties that they are required to discuss the alleged deficiencies with the complaint in person, by telephone or by video conference before each and every demurrer or motion to strike. (Code of Civil Procedure §§430.41(a), 435.5.)

Duplicative Claims

Defendants argue that causes of action one and two for negligence and negligent supervision are duplicative of cause of action three for negligent supervision, retention and training. Plaintiff disagrees.

The first cause of action for negligence is a combined claim involving allegations of negligent supervision of students; failure to provide safety protocols to prevent injuries; failure to provide proper medical care and failure to tell parents and law enforcement of the attack; and negligent hiring and supervision of staff. (Comp. ¶62.) Cause of action two is based on a failure to investigate, supervise and monitor students. (Comp. ¶71.) Cause of action three is based upon all negligent hiring, supervision and training of Ghilarducci and Boeger. (Comp. ¶¶96, 99, 100.)

The Court finds that there is some overlap between cause of action one and three and as such cause of action one is uncertain. Plaintiff is given leave to amend to remove the allegations regarding negligent hiring, supervision and training of District staff from cause of action one. Those allegations are already included in cause of action three.

The allegations in cause of action two regarding supervision of students overlap with cause of action one. Further, given the surrounding allegations, the claim of negligent supervision of students is properly included in cause of action one. In opposition, Plaintiff argues that cause of action two is based upon an alleged mandatory duties in the Education Code, however, no such mandatory duties are alleged in the complaint. The District did not demur on uncertainty to cause of action two. The Court cannot rule on an issue not raised in the moving papers.

On the duplicative argument, the demurrer is sustained as to cause of action one with leave to amend.

Causes of Action 1 and 2 (negligence and negligent supervision))

Defendants argue that the first and second causes of action do not allege sufficient facts to show that it was foreseeable that Dwayne would assault Plaintiff. Since causes of action one and two both include allegations regarding negligent supervision of students, the Court will address them together.

“[A] school district and its employees have a special relationship with the district's pupils, a relationship arising from the mandatory character of school attendance and the comprehensive control over students exercised by school personnel, ‘analogous in many ways to the relationship between parents and their children.’ [Citations.] Because of this special relationship... the duty of care owed by school personnel includes the duty to use reasonable measures to protect students from foreseeable injury at the hands of third parties acting negligently or intentionally. [Citations.]” (*C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, 869-870.)

“As the court in *C.A.* explained, a negligent supervision claim depends, in part, on a showing that the risk of harm was reasonably foreseeable. (*C.A.*, *supra*, 53 Cal.4th at pp. 869–870; see also *Leger v. Stockton Unified School Dist.* (1988) 202 Cal.App.3d 1448, 1459 [‘[T]he existence of a duty of care [of a school district toward a student] depends in part on whether the [particular] harm to [the student is] reasonably foreseeable.’].) ‘Foreseeability is determined in light of all the circumstances and does not require prior identical events or injuries.’ [Citations.] “‘It is not necessary to prove that the very injury which occurred must have been foreseeable by the school authorities Their negligence is established if a reasonably prudent person would foresee that injuries of the same general type would be likely to happen in the absence of [adequate] safeguards.’” [Citation.]” (*D.Z. v. Los Angeles Unified School Dist.* (2019) 35 Cal.App.5th 210, 229.)

While the duty analysis and foreseeability analysis are not interchangeable, in the context of a student being injured at school it is clear that the school district owes a duty to protect the student if the risk of harm is foreseeable. Thus, the key question here is whether Plaintiff has alleged sufficient facts to show that the risk of harm is foreseeable.

In *M.W.*, for example, the court of appeal affirmed a finding a duty where it found the school district owed a duty of care to a student who was sexually assaulted by another student in a school bathroom. (*M. W. v. Panama Buena Vista Union School Dist.* (2003) 110 Cal.App.4th 508, 518.) The court concluded that the risk of assault was foreseeable based on evidence at trial that (1) the district's lack of supervision in the early morning when the assault occurred in a known trouble spot, (2) the assailant's extensive prior record of discipline, and (3) the unique vulnerabilities of special education students such as the victim. (*Id.* at 519–520.)

In *Leger*, a student was attacked by a nonstudent in the school bathroom while he was changing for wrestling practice. Plaintiff alleged that defendants knew or should have known that members of the wrestling team (including plaintiff) were changing clothes before practice in the

unsupervised boys' restroom, that defendants knew or should have known the unsupervised restroom was unsafe for students, and that attacks were likely to occur there. In the context of a demurrer, the court found plaintiff had sufficiently alleged facts showing that the school had a duty because the facts showed that harm to plaintiff was reasonably foreseeable in the absence of supervision or a warning. (*Leger, supra*, 202 Cal.App.3d at 1459-1460.)

Here, Plaintiff argues that he alleged that Dwayne posed a foreseeable risk and had violent propensities known to the District. The FAC alleges that Boeger knew or should have known of Dwayne's violent tendencies and that the District staff knew or should have known that students, including Plaintiff, would be subjected to physical violence by other students, particularly Dwayne. (FAC ¶¶40 and 59.) Paragraph 73 (included in the second cause of action) alleges that the District should have known of Dwayne's acts and did not reasonably investigate, supervise or monitor Dwayne. (FAC ¶73.)

The Court finds that Plaintiff has sufficiently alleged facts showing that Dwayne had violent tendencies and the District knew or should of known of those tendencies. While the allegations are somewhat conclusory, the Court is reviewing this issue at the pleading stage. "Whether plaintiff can prove these allegations, or whether it will be difficult to prove them, are not appropriate questions for a reviewing court when ruling on a demurrer. [Citation.]" (*Leger, supra*, 202 Cal.App.3d at 1460.)

On this ground, the demurrer fails.

Cause of Action 3 (negligent supervision, retention, and training)

The third cause of action is based upon the District's negligent supervision, retention and training of Boeger and Ghilarducci.

"[A] direct claim against a governmental entity asserting negligent hiring and supervision, when not grounded in the breach of a statutorily imposed duty owed by the entity to the injured party, may not be maintained." (*de Villers v. County of San Diego* (2007) 156 Cal.App.4th 238, 255-256.) *C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861 discussed the difference between direct liability of a public entity (which requires a statutory basis) and vicarious liability based upon the actions of an employee (which is permitted under Government Code section 815.2). There, the court explained that a school district can be vicariously liable for an administrator's negligent hiring and supervision of a guidance counselor who later assaults a student. (*Id.* at 875.)

In opposition, Plaintiff cites to cases holding that an employer can be liable for negligent hiring and retention, but does not cite case law involving public entities.

Here, the claim for negligent supervision, retention and training of Boeger and Ghilarducci alleges that the District negligently hired teachers and administrators and the district was on notice as to their unfitness. (FAC ¶¶91, 100.) Thus, this claim is one for direct liability against the District for negligent hiring, retention and supervision and fails because it does not allege a statutory basis for the claim.

It is possible that Plaintiff is attempting to allege a claim for negligent supervision, retention and training based upon a vicarious liability theory. In the FAC, Plaintiff cited to C.A. for a quote on vicarious liability for negligent hiring, supervision and retention. Further, there are allegations that “Defendants, acting through managing agents and school administrators,” failed to adequately hire, supervise, or retain DISTRICT/LIBERTY UNION personnel. (FAC ¶62.) These facts might support a potential vicarious liability cause of action, but currently the third cause of action alleges a direct liability claim.

The demurrer to the third cause of action for negligent supervision, retention and training is sustained with leave to amend for Plaintiff to allege a theory based upon vicarious liability.

Cause of Action 4 (IIED)

In order to state a claim for intentional infliction of emotional distress, a plaintiff must show “(1) outrageous conduct by the defendant; (2) intention to cause, or reckless disregard of the probability of causing emotional distress; (3) severe emotional suffering and (4) actual and proximate causation of the emotional distress.” (*Cole v. Fair Oaks Fire Protection Dist.* (1987) 43 Cal.3d 148, 155 fn. 7.)

“Outrageous conduct is conduct that is intentional or reckless and so extreme as to exceed all bounds of decency in a civilized community.” (*Ragland v. U.S. Bank National Assn.* (2012) 209 Cal.App.4th 182, 204; accord *Christensen v. Super. Ct.* (1991) 54 Cal. 3d 868, 903.)

Here, the District argues that the claims alleged are based on negligence and thus, there can be no claim for IIED. Although negligence does not often support IIED, the Court’s practice is to review the facts alleged to see if they meet the elements for an IIED cause of action.

The facts alleged as to Boeger and the District are that Boeger, the assistant principal, lied to Plaintiff’s parent about Brandon’s injuries. (FAC ¶¶45, 105.) The other allegations are that Brandon was not given medical care at school and the District’s negligent failure to prevent the attack by Dwayne.

There are also allegations that a “reasonable person would not expect or tolerate the physical violence, abuse, threats, and harassment carried out by BOEGER AND THE DISTRICT against PLAINTIFF.” (FAC ¶104.) However, there are no facts alleged that Boeger or any District personnel assaulted, threatened or harassed Brandon. The Court has disregarded the allegation that Boeger assaulted and harassed Brandon for this analysis because there are no facts to support it.

The Court finds that the allegations that Boeger lied to Brandon’s parent regarding the attack are insufficient to support a claim for IIED. The Court is not convinced that the lie regarding the extent of the attack is sufficiently extreme and outrageous. But in any event, Brandon’s parent, not Brandon, would have the claim, if any, for being lied to.

The remaining allegations support a theory of negligence against the District and Boeger, however, they do not rise to the level of extreme and outrageous conduct. Therefore, Plaintiff has not

alleged a cause of action for IIED and the demurrer is sustained with leave to amend.

Separately, it is not clear what cause of action is alleged against Ghilarducci and when amending his complaint, Plaintiff shall clarify whether Ghilarducci is a defendant and if so, what claim is alleged against her. When amending, Plaintiff shall also remove the fifth cause of action for dangerous condition of public property and defendant Liberty Union High School per the parties' agreement.

7. 9:00 AM CASE NUMBER: C24-02650
CASE NAME: BRANDON B. VS. LIBERTY UNION HIGH SCHOOL DISTRICT
***HEARING ON MOTION IN RE: STRIKE ALLEGATIONS OF 1ST AMENDED COMPLAINT**
FILED BY: LIBERTY UNION HIGH SCHOOL DISTRICT
TENTATIVE RULING:

Defendants Liberty Union High School District, Linda Ghilarducci and Samantha Boeger's motion to strike portions of the first amended complaint is **granted with leave to amend**.

Defendants request to strike the allegations for punitive damages in paragraphs 111 and 113 and the prayers for punitive damages and attorney fees.

Plaintiff is seeking attorney fees against all Defendants. Defendants correctly point out that attorney fees are not normally allowed in a tort case and Plaintiff concedes the point. The motion to strike attorney fees is granted.

Plaintiff is seeking punitive damages against Ghilarducci and Boeger. In order to obtain punitive damages the facts alleged must show fraud, oppression or malice. (Civil Code §3294.) Subdivision (c) of the statute contains the following definitions: "(1) 'Malice' means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others. [P] (2) 'Oppression' means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights. [P] (3) 'Fraud' means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury."

"Nonintentional torts may also form the basis for punitive damages when the conduct constitutes conscious disregard of the rights or safety of others. [Citations.] Nonintentional conduct comes within the definition of malicious acts punishable by the assessment of punitive damages when a party intentionally performs an act from which he knows, or should know, it is highly probable that harm will result. [Citations.]" (*Peterson v. Superior Court* (1982) 31 Cal.3d 147, 158.)

As to Boeger, Plaintiff argues that allegations that Boeger lied to Brandon's parent about what happened during the attack are sufficient to support punitive damages. (FAC ¶35.) The claim that Boeger lied to Brandon's parent does not show why punitive damages should be awarded for Brandon's claims. The remaining facts alleged against Boeger do not rise to the level of fraud,